

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Date Filed:
Index No.

-----X
NATHAN MERCADO

Plaintiff designates Bronx County
As place of trial based on
Place of incident

Plaintiff,

-against-

SUMMONS

THE CITY OF NEW YORK, P.O. ALAN AVELLA
SHIELD NO. 021757

Defendants
-----X

TO THE ABOVE NAMED DEFENDANT:

You are hereby summoned and required to serve upon plaintiff's attorneys an answer to the complaint in this action within twenty (20) days after the service of this summons, exclusive of the day of service, or within thirty (30) days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
January 30, 2017


YALKUT & ISRAEL
Attorneys for Plaintiff
2139 Williamsbridge Road
Bronx, New York 10461
718-292-2952

Defendants' Name and Address:

City of NY - 1 Centre St., N.Y., N.Y. 10007
P.O. Aveella - 44th precinct - 2 East 169th St., Bronx, N.Y.
10452

Notice: The nature of this action is false arrest, false imprisonment, Civil Rights violations.

The Relief sought is Money damages

Upon your failure to appear, judgement will be taken against you by default in a sum within the jurisdictional limits of the Supreme Court and more than the jurisdiction of all inferior Courts.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
NATHAN MERCADO

Plaintiff(s),

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, P.O. ALAN AVELLA
SHIELD NO. 021757

Defendants
-----X

Plaintiff, as and for his/her Verified Complaint, by his/her attorney(s), Yalkut & Israel,
allege the following upon information and belief;

1. That at all times hereinafter mentioned, defendant, THE CITY OF NEW YORK
(hereinafter referred to as "CITY") was a municipal corporation duly organized and
existing pursuant to the laws of the State of New York.
2. A notice of claim was served upon defendant, CITY, within ninety(90) days of the
occurrence and/or accrual of the cause of action.
3. More than thirty(30) days have elapsed since presentation of said claim, and defendant,
CITY, has failed to adjust and /or dispose of the claim presented therein.
4. This action is commenced within one year and ninety days of the date of the incident
and/or accrual of the cause of action.
5. That at all times herein mentioned, the Plaintiff was and still is a resident of the County of
Bronx, City and State of New York;
6. That at all times hereinafter mentioned, defendant, CITY, owns THE NEW YORK CITY
POLICE DEPARTMENT, hereafter referred to as "POLICE", as a subsidiary;
7. That at all times hereinafter mentioned, defendant, CITY, operates, controls, manages

and maintains the "POLICE";

8. That at all times herein mentioned, defendant P.O. ALAN AVILLA, hereafter referred to as "Alan: was employed by the "City" and its subsidiary "Police" and was acting within the scope of his authority

FIRST CAUSE OF ACTION-FALSE IMPRISONMENT:

9. The Plaintiff repeats and re-alleges each and every allegation of the complaint numbered 1 through 8 as though same was more fully set forth herein;
10. On February 4, 2016 plaintiff was lawfully at or near stairwell B the landing between the 18th floor and 17th floor, of premises 3073 Park Avenue, County of Bronx, City and State of New York, when members of the "Police" of defendant, "City", including the defendant "Alan" responded to said location.
11. The Plaintiff was lawfully at said location. The named Defendants ant two other officers and two other officers exited an unmarked car, guns drawn and asked "Where is the marijuana". The plaintiff responded "There is none". The plaintiff was searched twice in and nothing was found. the officers bagged the cigarette that fell from the plaintiff's mouth
12. The Plaintiff was falsely imprisoned at both the scene of the occurrence and continuing thereafter at the 44th Precinct where a DAT was issued;
13. As a result of the aforementioned, the plaintiff suffered emotional trauma, feared for his life, sustained severe and serious personal injuries and other consequential damages.
14. The Plaintiff intends to claim punitive damages for all of the causes of action interposed herein.
15. The criminal action against the Plaintiff was disposed of as follows: case dismissed May

23, 2016;

16. As a result of the foregoing, the plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

SECOND CAUSE OF ACTION-FALSE ARREST

17. The Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "16" herein as if more fully set forth at length:
18. The Plaintiff was, without cause or provocation, falsely arrested.
19. As a result of the foregoing, the Plaintiff suffered emotional trauma, fear for his life, , sustained severe and serious personal injuries and other consequential damages.
20. The Plaintiff intend to claim punitive damages for all of the causes of action interposed herein.
21. As a result of the foregoing, the plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts..

THIRD CAUSE OF ACTION-MALICIOUS PROSECUTION

22. The Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "21" herein as if more fully set forth at length:
23. Defendants maliciously prosecuted criminal charges against the plaintiff, as a proper investigation would reveal the charges to be false and unfounded. The charges were dismissed. May 23, 2016
24. As a result of the foregoing, the plaintiff suffered emotional trauma, fear for his life, sustained severe and serious personal injuries and other consequential damages.

25. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein.
26. As a result of the foregoing, the plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts..

FOURTH CAUSE OF ACTION-NEGLIGENT TREATMENT:

27. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "26" herein as if more fully set forth at length:
28. At the aforementioned time and place, the plaintiff was negligently treated by various police officers employed by the defendant, "CITY", including the named defendants;
29. Said police officers were acting within the course and scope of their employment with defendants.
30. The Plaintiff intends to claim punitive damages for all of the causes of action interposed herein.
31. As a result of the foregoing, the plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

FIFTH CAUSE OF ACTION-BATTERY

32. The Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "31" herein as if more fully set forth at length.
33. At the aforementioned time and place, the plaintiff, was battered by defendants without any provocation on the part of the plaintiff;

34. As a result of the aforementioned, plaintiff sustained serious and severe permanent and emotional personal injuries and other consequential damages;
35. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein.
36. As a result of the foregoing, the plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

SIXTH CAUSE OF ACTION-INVASION OF PRIVACY:

37. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "36" herein as if more fully set forth at length:
38. The aforementioned occurrence constituted an invasion of the privacy of the plaintiff;
39. As a result of the foregoing, the Plaintiff sustained severe and serious personal and emotional injuries and other consequential damages.
40. The Plaintiff intends to claim punitive damages for all of the causes of action interposed herein.
41. As a result of the foregoing, the plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

SEVENTH CAUSE OF ACTION-CIVIL RIGHTS VIOLATION:

42. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "40" herein as if more fully set forth at length:
43. As a result of the aforementioned occurrence, plaintiff, *, was deprived of his civil rights under the Constitution of the State of New York and the Constitution of the United

States, as well as other State ordinances statutes, codes and rules, including but not limited to 42 USC §1981, §1983, §1985 and 28 USC § 1343.

44. As a result of the foregoing, plaintiff suffered emotional trauma, feared for his life, sustained severe and serious personal injuries and other consequential damages.
45. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein.
46. As a result of the foregoing, plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.
47. Defendants arrested and incarcerated in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest and incarceration would jeopardize plaintiffs liberty, well being, safety and constitutional rights.
48. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.
49. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to the customs , policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department., all under the supervision of ranking officers of said department.
50. . The aforementioned customs, policies. usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:
 - a) fabricating evidence against innocent persons erroneously arrested during drug bust operations;
 - b) arresting innocent persons wrongfully apprehended during an bust operations: and

- c) arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing

51. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct. as documented in the following civil rights actions filed against the City of New York:

- Frank Douglas v. City of New York., United States District Court Southern District of New York, 03 CV 6475;
- Darnell Flood v. City of New York., United States District Court, Southern District of New York. 03 CV 10313;
- Theodore Richardson v. City of New York. et al., United States District Court, Eastern District of New York, 02 CV 3651;
- Phillip Stewart v. City of New York., United States District Court, Southern District of New York, 05 CV 2375;
- Benjamin Taylor v. City of New York., United States District Court. Eastern District of New York, 01 CV 5750;
- Angel Vasquez v. City of New York., United States District Court, Eastern District of New York, 05 CV 3552;
- Alvin ,Williams v. City of New York., United States District Court, Southern District of New York.. 05 CV 4013:
- Terrence Burton v. City of New York., United States District Court, District of New York, 06 CV 6884.

52. The foregoing customs, policies. usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted a deliberate indifference to the safety', well-being and constitutional rights of plaintiff

53. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations as alleged herein

54. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.
55. As result of the foregoing custom, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was incarcerated
56. Defendants, collectively and individually, while acting under color of State Law, were directly and actively involved in violating the constitutional rights of plaintiff
57. Defendants, collectively and individually, while acting under color of State Law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.
58. All of the foregoing acts by the defendants deprived the plaintiff of federally protected rights, including but not limited to:
- A. Not to be deprived of liberty without due process of law.
 - B. To be free from seizure and arrest not based upon probable cause.
 - C. To be free from unwarranted and malicious criminal prosecution.
 - D. Not to have cruel and unusual punishment imposed upon him/her; and
 - E. To receive equal protection under the law.
59. The plaintiff intends to seek punitive damages on all counts ;
60. As a result of the foregoing, the Plaintiff suffered emotional trauma, feared for his life, sustained severe and serious personal injuries and other consequential damages.
61. Plaintiff intend to claim punitive damages for all of the causes of action interposed herein
62. As a result of the foregoing, the plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

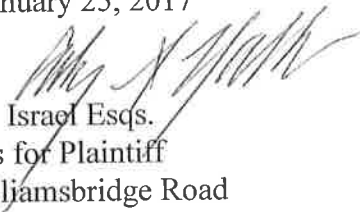
EIGHTH CAUSE OF ACTION-NEGLIGENCE

63. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "62" herein as if more fully set forth at length:
64. The aforementioned occurrence took place by reason of the negligence of defendants, its agents, servants and/or employees, including various police officers.
65. As a result of the foregoing, the Plaintiff suffered emotional trauma, feared for his life, sustained severe and serious personal injuries and other consequential damages.
66. The Plaintiff intends to claim punitive damages for all of the causes of action interposed herein.
67. As a result of the foregoing, the plaintiff has been damaged in a sum within the Jurisdictional limits of the Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

WHEREFORE, the plaintiff seeks damages in all causes of action, in a sum within the jurisdictional limits of The United States District Court, Southern District and in excess of the jurisdictional limits of all inferior Courts.

Dated :Bronx, New York

January 25, 2017


Yalkut & Israel Esqs.
Attorneys for Plaintiff
2139 Williamsbridge Road
Bronx, New York 10461
(718) 292-2952

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
) ss.
COUNTY OF BRONX)

The undersigned, being duly sworn, deposes and says that the deponent is the plaintiff in the within action; that deponent has read the foregoing summons and complaint and response to combined demands and knows the contents thereof; that the same is true to deponent's own knowledge; except as those matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.


Nathan Mercado

Sworn to before me this 13th
day of April 2017

NOTARY PUBLIC

CURITY JEFFREY
Notary Public, State of New York
No. 01JE614752
Qualified in Bronx County
Commission Expires Feb. 27, 2011

LAW OFFICES
OF
YALKUT & ISRAEL
865-B Walton Avenue
Bronx, New York 10451
(718) 292-2952

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF BRONX

INDEX NO

NATHAN MERCADO

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. ALAN AVELLA, SHIELD NO. 021757

Defendants

VERIFIED SUMMONS AND COMPLAINT

YALKUT & ISRAEL
Attorneys for Plaintiff
2139 Williamsbridge Road
Bronx, New York 10461
(718) 292-2952
(718) 993-1542 (Fax)

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State certifies that upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: 4-19-17

Signature: 

Print Signature Name: ARON S. YALKUT

TO:

Attorney(s) for _____

Service of a copy of the within
admitted.

is hereby

Dated: _____

Attorney(s) for _____

PLEASE TAKE NOTE

that the within is a (certified copy of a

entered in the Office of the Clerk of the within named court on

20

that an order of which the within is a true copy will be presented for settlement

to the Hon.

, one of the judges of the within named court,

on , 20 , at M.

YALKUT & ISRAEL
Attorneys for Plaintiff(s)
2139 Williamsbridge Road
Bronx, New York 10461
(718) 292-2952
(718) 293-1542 (Fax)